

Section L - Instructions, Conditions, and Notices to Offerors

1.0 General Instructions

1.1. The government plans to award a single construction order for the project described in the Order Proposal Request (OPR) in accordance with (IAW) the statement of work (SOW) drawings, and specifications. This ITO shall take precedence should there be any conflict between the Basic Ordering Agreement (BOA) and this ITO.

1.2. This acquisition will utilize Lowest Priced Technically Acceptable (LPTA) Source Selection procedures with technical proposals IAW the Multiple Award Contract (MAC) BOA procedures and in accordance with FAR Part 15.3 as supplemented. This ITO provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The offeror's proposal must include all data and information requested by this ITO. Non-conformance with the instructions provided in this ITO may result in an offeror's proposal being determined ineligible for award. The offer shall be compliant with the requirements as stated in the OPR and its attachments for this construction project.

1.3. The offeror's completed proposal shall consist of the completed and signed OPR, to include any amendments issued, with a cover letter delineating any exceptions taken to the OPR terms and conditions with accompanying rationale. However, offerors are cautioned that any noncompliance with the terms and conditions of the OPR may cause their proposal to be determined ineligible for award.

1.4. Submit only one proposal for the project, if multiple proposals or proposal options are submitted, it may cause your submission to be technically unacceptable. Your proposal, to include work plan, price, and bid bond must be provided to this office not later than the response stated on the SF 1442, block 13a, or amendment if applicable.

1.5. The Procurement Contracting Officer (PCO) is the **sole** point of contact for this acquisition. Exchanges of information between government and offerors will be controlled by the PCO.

1.6. Email may be used to transmit the proposal and must include "Company Name, Source Selection Information – See FAR 2.101 and 3.104" in the subject line of the email. When submitting source selection information via email, file suppression utilities, to include but not limited to zip files, will not be accepted.

1.7. Do not provide any password protected files as part of the proposal. The electronic copies of the proposal shall be submitted in a format readable by Microsoft (MS) Word 2007, 2010, or 2013, MS Excel 2007, 2010 or 2013, MS-Power Point 2007, 2010, or 2013, and MS-Project 2013, and Adobe Acrobat Portable Document Format (PDF), as applicable. Do NOT submit any documents in PDF format that are copied as "images." When creating PDF files always create to enable textual search and copy functions.

1.8. The PCO will promptly notify offerors of any decision to exclude them from the competitive range, whereupon they may request and receive a debriefing IAW FAR 15.505. Offerors excluded from the competitive range may request a pre-award debriefing or they may choose to wait until after the source selection decision to request a post-award debriefing. However, offerors excluded from the competitive range are entitled to no more than one debriefing. The PCO will notify unsuccessful offerors in accordance with FAR 15.503. Upon such notification, unsuccessful offerors may request and receive a debriefing. Offerors desiring a debriefing must make their request IAW the requirements of FAR 15.505 or 15.506, as applicable.

1.9. If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the PCO in writing with supporting rationale as well as the remedies the offeror is asking the PCO to consider as related to the omission or error. The offeror is reminded that the government reserves the right to award this effort based on the initial proposal, as received, without discussions. This reservation includes matters of additional submittals of the initial proposal.

1.10. If this OPR is amended, all terms and conditions that are not amended remain unchanged and in full force and effect. Offerors shall acknowledge receipt of any amendment and provide confirmation upon submission of the offeror's proposal. Any unacknowledged amendments in the offeror's proposal will render the offeror ineligible for award.

1.11. Proposals and modifications to proposals shall be submitted in via previously mentioned method addressed to the contracting specialist/contracting officer at the address shown on OPR and showing the time and date specified for receipt, the OPR number, and the name and address of the offeror.

1.12. The government intends to award without exchanges; therefore, the proposal should contain the offeror's best terms. However, the government reserves the right to conduct exchanges if deemed in its best interest. Exchanges are interactions between the PCO and the offeror and may address any aspect of the proposal. Offeror responses to exchanges will be considered in making the award selection decision.

1.13. Each page containing proprietary information should be so marked.

1.14. Each page should contain the legend "CUI SOURCE SELECTION INFORMATION—SEE FAR 2.101 and 3.104" at the bottom of each sheet.

1.15. Page Size and Format

1.15.1. A page is defined as each face of a sheet of paper containing information. When both sides of a sheet display printed material, it shall be counted as two pages. Page size shall be 8.5 x 11 inches, not including foldouts. Page line spacing shall be 1.5 lines. Except for the reproduced sections of the solicitation document, the text size shall be no less than Arial 12 points. Tracking, kerning, and leading values shall not be changed from the default values of the word processing or page layout software. Use at least 1-inch margins on the top and bottom and

3/4-inch side margins. Pages shall be numbered sequentially by volume. These page format restrictions shall apply to responses to Evaluation Notice (ENs). These limitations shall apply to both electronic and hard copy proposals.

1.15.2. Legible tables, charts, graphs and figures shall be used wherever practical to depict organizations, systems and layout, implementation schedules, plans, etc. These displays shall be uncomplicated and shall not exceed 11 x 17 inches in size. Foldout pages shall fold entirely within the volume, and count as a single page. Foldout pages may only be used for large tables, charts, graphs, diagrams and schematics, not for pages of text. The following limitation only applies to the Technical Volume. Text intended for evaluation within all figures, charts, tables, and graphs, to include imbedded images, shall be no less than Arial 8-pt. These limitations shall apply to both electronic and hard copy proposals. Any text within figures, charts, tables, and graphs which do not meet this requirement will not be considered in the evaluation. These limitations shall apply to both electronic and hard copy proposals.

2.0. Factor 1 – Technical

2.1. In the Technical Volume of the proposal, address your proposed approach to meeting the minimum performance or capability requirements of the technical requirements identified in the OPR. The technical proposal should be specific and complete. Legibility, clarity, and coherence are very important. Your responses will be evaluated against the technical subfactors defined in Section M - Evaluation Factors for Award. Using the instructions provided below, provide as specifically as possible the actual methodology you would use for accomplishing/satisfying the technical subfactors. All the requirements specified in the OPR are mandatory. By your proposal submission, you are representing that your company will perform all the requirements specified in the OPR. Mere recitation of the OPR requirements, or phrases that refer to the government's SOW, without sufficient supporting information as to how work will be accomplished will not be accepted. Narratives shall provide detail of sufficient level to allow one skilled in engineering and the building trades to make a sound decision as to the technical viability of the proposal. The technical volume shall include:

a) Technical Volume Cover Sheet. The technical order volume shall include a cover sheet containing date, OPR number, project number and title, offeror contact information, and assertion the proposal meets the mandatory completion date stated in the OPR.

b) Project Narrative. The project narrative shall clearly demonstrate the offeror's understanding of the project scope by including the following information:

- 1) Project synopsis (description)
- 2) Proposed method of accomplishing the work
- 3) Type of site field verification performed
- 4) Anticipated user impacts
- 5) Protection of government property during construction
- 6) Supplemental drawings/sketches
- 7) In-house design calculations
- 8) Estimating notes

9) Take-off calculations to justify quantities used in proposal (includes Subcontractor's calculations)

10) Manufacturer supplied drawings / calculations

11) Catalog/product technical information

12) Assumptions

13) Clarifications and exceptions

14) Supporting documentation

2.2. Technical Subfactor 1: Capability and Management

2.2.1. Describe capability and commitment to support an on-site management team, including a sole source of responsibility for both design and construction of this project IAW Section 3.12. Contractor Personnel Requirements and 3.12.5.1 to 3.12.3.2 Design Program Manager within the SOW.

2.2.2. Describe how your organization will manage, supervise, and coordinate the subcontractor's work and who in the organization will be responsible for this management and coordination that is required IAW all Section 3.12.6 of the SOW.

2.2.3. Describe how warranty support, unforeseen site conditions, design errors, etc. will be handled by your organization IAW the Warranty of Construction Clause FAR 52.246-21 and the Differing Site Condition Clause FAR 52.236-2.

2.2.4. Provide a Team List of the primary point of contacts IAW Section 3.12 Contractor Specific Requirements within the SOW.

2.3. Technical Subfactor 2: Schedule and Planning.

2.3.1. The offeror shall include a proposed construction schedule that meets or improves the mandatory completion date stated in the OPR. The offeror's proposed schedule shall demonstrate a reasonable and realistic sequence of activities which represent all work to be performed throughout the entire order performance period, while considering the major work elements from the detailed price proposal, as well as submittal reviews, mobilization, material delivery times, anticipated weather delays, and final inspection/closeout IAW Section 3.6.1 of the SOW.

2.3.2. In developing the schedule, note that there will be submittals; milestones (such as final inspections); and construction-related permits/requests (such as Outage/Closure Requests or Excavation Permits) that will require longer lead times for Government coordination/approval listed in the of section 3.6.2 of the SOW.

2.3.3. Specific timelines for staging area approvals, airfield waivers, outage requests and other Government approvals are provided in the SOW Section 3.6.2 in table listed as "Delivery Schedule & Submittals".

3.0. Factor 2 – Price

3.1. In the price volume, the offeror shall provide a fully supported price proposal. Compliance with these instructions is mandatory and failure to provide all the required data may result in an offeror being determined ineligible for award. The offeror shall provide a detailed price proposal describing each element of the design and construction effort. Design and construction price shall be provided IAW the contract line item (CLIN) structure as requested in the OPR. The order proposal shall provide the following supporting documentation so that the government team can evaluate the reasonableness of your proposed price. All pricing information shall be addressed ONLY in the Price Proposal and Order Documentation volumes. Work hour estimates, and material kinds and quantities may be used in other volumes only as appropriate for presenting rationale for alternatives or design and trade-off decisions.

3.2. The Pricing Volume shall include the following:

a) Price Volume Cover Sheet. The price volume shall include a cover sheet containing date, OPR number, project number and title, offeror contact information, CLIN prices and the total price.

b) Detailed Price Proposal

1) Design Price proposals shall include proposed labor categories, labor hours per category, and labor rates per category. The design price shall be submitted as a total design price with a breakout of design and non-design price that demonstrates compliance with DFARS 236.606-70, Statutory Fee Limitation.

2) Construction price proposals shall be broken out/subtotaled per the divisions defined by the Construction Specifications Institute (CSI) Master Format System. The offeror shall submit construction price proposals utilizing AF Form 3052, Construction Price Estimate Breakdown, or a contractor generated equivalent that provides the same information.

3) Construction price proposals shall be detailed enough for government reviewers to determine the contractor's understanding of the work to be performed and that the proposal is complete (includes all work items included in the order). Price proposals shall be broken down to at least CSI Level IV.

c) Price Supporting Documentation. The offeror shall provide supporting documentation which demonstrates how the offeror arrived at the proposed price. Documentation the offeror shall submit are listed below. This includes but is not limited to:

- 1) Subcontractor quotes
- 2) Supplemental drawings/sketches
- 3) In-house design calculations
- 4) Estimating notes
- 5) Take-off calculations to justify quantities used in proposal (includes subcontractor calculations
- 6) Manufacturer supplied drawings/calculations
- 7) Catalog/product technical information

8) The government reserves the right to ask for additional details during the evaluation of offeror's proposals for the purpose of clarification. Any request that would result in a proposal change will be accomplished through formal discussions.

d) Price Assumptions

e) Clarifications and Exceptions

f) Subcontractor quotes. Pricing for subcontracted work shall comply with the following requirements:

1) Subcontractor quotes shall provide the same level of detail and include supporting documentation as described in section 3.2(b), "Detailed Price Proposal".

2) Subcontractor quotes should be based on the best value offered from at least two vendors.

3) Contractor shall provide a copy of the quotes as part of the proposal package.

4) In the event that the minimum of two (2) acceptable vendors cannot be obtained (only one supplier, potential suppliers/subcontractors are unresponsive or respond with 'no bid', etc.), a justification for the single quote shall be submitted as a part of the proposal package.

3.3. Offeror's pricing proposal will be evaluated for reasonableness, balance, and realism. Unreasonable and/or unrealistic proposed prices, initially or subsequently, may be grounds for eliminating a proposal from competition. Additionally, unbalanced pricing may pose an unacceptable risk to the government and may render an offeror's proposal ineligible for award. The offers should be sufficiently detailed to demonstrate their price reasonableness and balance. The burden of proof for credibility of proposed prices rests with the offeror.

3.4. The Government will evaluate proposals for price realism to determine whether proposed prices are based on an adequate understanding of contract requirements and to ensure the proposed price does not pose an unacceptable risk to performance. Offerors shall provide sufficient rationale describing how prices were developed (such as assumptions, historical data, projections, expertise, management decisions, etc). All proposed prices shall be sufficient and adequately proposed to ensure performance is not at an unacceptable risk with prices proposed too low

3.5. The government will evaluate proposals for reasonableness to include completeness. For completeness, offerors must propose pricing for all CLINs except for those labeled as "not separately priced (NSP)". Normally, price reasonableness is established through adequate price competition, but may also be determined through proposal analysis techniques. The burden of proof for credibility of proposed prices rests with the offeror. Offerors shall provide sufficient rationale describing how prices were developed (such as assumptions, historical data, projections, expertise, management decisions, etc.).

3.6. The government will evaluate proposals for balance. The offeror is cautioned against submitting an offer that exhibits unbalanced pricing. Unbalanced pricing may increase performance risk and could result in payment of unreasonable or unrealistic prices. An offer could be so grossly unbalanced that acceptance of the offer would be tantamount to allowing an

advanced payment. For this acquisition, balanced pricing is determined with respect to CLIN pricing variance. Offerors shall provide rationale for any proposed CLIN price increase greater than 5% from one year to another, or any proposed CLIN price decrease from one year to another. Unexplained price variances from year-to-year could suggest unbalanced pricing. It is in the Offeror's best interest to provide explanations or supporting rationale for any significant annual CLIN price variances.

3.7. The government will evaluate the proposals for compliance with DFARS 236.606-70, Statutory Fee Limitation, as applicable, if design is part of the contract requirement. If applicable, the offeror shall clearly state the design and non-design fees in accordance with DFARS 236.606-70.

3.8. FAR Part 15 applies to this acquisition. IAW FAR 15.403-3-1(b), prices based on adequate price competition do not require submission of certified cost or pricing data. In accordance with FAR 15.403-3(a), however, information other than certified cost or pricing data may be required to support price reasonableness. FAR 15.403-3(a)(1) provides for obtaining information other than certified cost or pricing data if needed to determine price reasonableness. Therefore, the FAR does not preclude the requirement for obtaining other than certified cost or pricing data under certain circumstances and the government reserves the right to obtain data as appropriate. Should the PCO determine proposed prices to appear unreasonable or the possibility that an offeror does not fully understand the requirement, the offerors may be required to support price reasonableness via other than certified cost or pricing data. If, after receipt of proposals, the PCO determines that there is insufficient information available to determine price reasonableness and none of the exceptions in FAR 15.403-1 apply, the offeror shall be required to submit certified cost or pricing data.

3.9. All dollar amounts shall be rounded to the nearest cent. All rates shall be rounded to four decimal places to the right of the decimal point.

3.10. Provide assumptions regarding usage of all government property as reflected in your pricing proposal.

4.0. Order Volume

4.1. The purpose of this volume is to provide information to the government for preparing the order document and supporting file. The offeror's proposal shall include a signed copy of the Model Order.

4.2. The offeror shall provide required information to complete clauses as required. Offerors shall ensure that all clauses and provisions that require "fill-in" information are appropriately completed, including the proposed prices associated with the contract line items in the Schedule of the OPR.

4.3. Bid Guarantee (Bond): A bid guarantee (minimum of 20% of proposal) is required IAW FAR 28.101-1. Failure to furnish a bid guarantee in the proper form and amount may be a cause for rejection of your bid.

4.4. The proposal acceptance period (validity) is specified on the SF 1442, block 13d of the model contract/solicitation. The offeror shall make a clear statement in the proposal documentation that the proposal is valid until this date.

4.5. The offeror shall provide a statement the offeror has completed the annual representations and certification electronically via the SAM website at <https://www.sam.gov/SAM/>. After reviewing the SAM database information, the offeror verifies by submission of this offer that the representation and certifications currently posted electronically.

4.6. Provide the name, title, telephone number, and email address for the company/division point of contact regarding decisions made with respect to your proposal and who can obligate your company contractually. Also, identify those individuals authorized to negotiate with the government.